

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 06/26/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and

SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

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Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02389

CASE NAME: GAUDENCIO CUEVAS VS. JOSE SAUCEDO

HEARING ON SUMMARY MOTION

FILED BY: SAUCEDO, JOSE

TENTATIVE RULING:

Before the Court is Defendant Sergio Rene Margarito and Defendant Jose Saucedo (collectively, "Defendants")'s motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff Gaudencio Cuevas ("Plaintiff")'s complaint for motor vehicle negligence. Defendants move on the grounds that Plaintiff's action is barred by the workers' compensation exclusivity rule.

As a threshold issue, the Court declines to consider any of the evidence adduced by Defendants on reply. (*Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, fn. 8 [in summary judgment case, trial court had discretion to consider new evidence in reply papers as long as other party had opportunity to respond].) Plaintiff's objections to this material are well-taken.

For the following reasons, Defendants' motion is **granted**.

Request for Judicial Notice

On reply, Defendants request judicial notice of the first amended answer file dated September 2, 2025 and the joint stipulation and order granting Defendants leave to file an amended answer dated August 27, 2025. The Court may take judicial notice of this pleading and order, but not the truth of the allegations asserted therein. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914, 918; Evid. Code §§ 452(a), 452(d), 453.) Subject to that limitation, the request is **granted**.

Legal Standard

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) Where a defendant seeks summary judgment or adjudication, he must show that either "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action." (*Id.* at § 437c(o)(2).) A defendant may satisfy this burden by showing that the claim "cannot be established" because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a "triable issue of one or more material facts exists as to that cause of action or defense thereto." (*Ibid.*)

The moving party bears the initial burden of production to make a *prima facie* showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at § 437c(p).)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (*Id.* at § 437c(p)(2).) On a motion for

summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21.)

Brief Factual Background

It is undisputed that Plaintiff Gaudencio Cuevas was employed with All Clean Gutters & Roofing, Inc. on the day of the accident in Redwood City. (UMF 1.) Defendant Jose Saucedo served as Plaintiff's supervisor. (UMF 6.) Defendant Sergio Rene Margarito was also employed by All Clean Gutters & Roofing. (UMF 7.)

The subject collision occurred on November 5, 2020 at approximately 6 p.m. (UMF 9.) At the time of the subject collision, Defendant Sergio Rene Margarito was driving the vehicle, with Plaintiff Gaudencio Cuevas and another All Clean Gutters employee, Patricio Torres, riding as passengers. (UMF 10.) Plaintiff and Defendant Margarito were traveling from a job site in Redwood City. (UMF 11.) At the time of the incident, Plaintiff Gaudencio Cuevas and Defendant Sergio Rene Margarito were travelling to return the pickup truck to its designated and customary drop-off location, where All Clean Gutters employees routinely left the vehicle after completing a job assignment. (UMF 13.)

Analysis

Defendants move for summary judgment on the grounds they are immune from liability under the California Workers' Compensation Act, Labor Code section 3200 et seq. "Subject to certain narrowly defined exceptions, the California Workers' Compensation Act provides the exclusive remedy for injuries arising within the course of employment." (*Pichon v. Pacific Gas & Electric Co.* (1989) 212 Cal. App. 3d 488, 494; see Labor Code, § 3600 [liability for workers' compensation shall, without regard to negligence, exist against an employer for any injury sustained by its employees arising out of and in the course of the employment]; Labor Code, § 3602 [where the injury is proximately caused by the employment, workers' compensation is the "sole and exclusive remedy" for an employee against his employer].) The Workers' Compensation Act requires employers to "secure the payment of compensation" for employees, either by obtaining liability coverage from an authorized insurer or by self-insuring. (Labor Code, § 3700, subds. (a), (b).) In addition, the Workers' Compensation Act provides: "If an employer fails to secure the payment of compensation, any injured employee or his dependents may bring an action at law against such employer for damages, as if [this Act] did not apply." (Labor Code, § 3706.)

Plaintiff argues that Defendants did not assert Workers' Compensation exclusivity as an affirmative defense in their answer to Plaintiff's Complaint and cannot assert the

defense for the first time on summary judgment. First, this does not appear to be accurate representation of the operative pleadings; Defendant Sergio Rene Margarito's amended answer pleads workers' compensation exclusivity as his twenty-ninth affirmative defense. It does appear, however, that Defendant Jose Saucedo's answer omits the affirmative defense of workers' compensation exclusivity. Second, Plaintiff's complaint alleges that Jose Saucedo and Sergio Rene Margarita were operating a motor vehicle in the course of their employment. These alleged facts indicate coverage by the Workers' Compensation Act and are sufficient to raise the exclusivity defense on summary judgment. (See *Doney v. Tambouratgis* (1979) 23 Cal. 3d 91; see also *Gibbs v. Am. Airlines, Inc.* (1999) 74 Cal. App. 4th 1, 12–13.) For the same reasons, the Court finds Plaintiff's argument that Defendants must adduce evidence of their workers' compensation policy on summary judgment lacks merit. "A defendant need not plead and prove that it has purchased workers' compensation insurance where the plaintiff alleges facts that otherwise bring the case within the exclusive province of workers' compensation law, and no facts presented in the pleadings or at trial negate the workers' compensation law's application or the employer's insurance coverage." (*Gibbs, supra*, 74 Cal. App. 4th at p.14 [citing *Doney, supra*, 23 Cal. 3d at pp.97-98].) Furthermore, Plaintiff does not contend that there is no workers' compensation coverage or there is inadequate coverage. Defendants are entitled to bring their motion on this issue.

The critical issue on this motion is whether Plaintiff's injuries occurred in the course and scope of his employment. This determination requires a two-prong analysis. (*LaTourette v. Workers' Comp. Appeals Bd.* (1998) 17 Cal.4th 644.) First, the injury must occur "in the course of employment," which ordinarily "refers to the time, place, and circumstances under which the injury occurs." (*LaTourette, supra*, at 645.) Second, the injury must "arise out of" the employment, "that is, occur by reason of a condition or incident of employment, [however], the injury need not be of a kind anticipated by the employer nor peculiar to the employment in the sense that it would not have occurred elsewhere." (*Employers Mut. Liability Ins. Co. v. Industrial Acci. Com.* (1953) 41 Cal.2d 676, 679–680.) "All that is required is that the employment be one of the contributing causes without which the injury would not have occurred." (*South Coast Framing v. Workers' Comp. Appeals Bd.* (2015) 61 Cal.4th 291, 297–298, quoting *LaTourette, supra*, at 651, fn. 1; *Maher v. Workers' Comp. Appeals Bd.* (1983) 33 Cal.3d 729, 734, fn. 3.) Moreover, "where the injury occurs on the employer's premises while the employee is in the course of his employment, the injury also arises out of the employment unless the connection is so remote from the employment that it is not an incident thereof" (*California Compensation & Fire Co. v. Workers' Comp. Appeals Bd.* (1968) 68 Cal.2d 157, 160.)

Here, it is undisputed that at the time of the collision, Defendant Sergio Rene Margarito was operating the vehicle in the course of his employment with All Clean Gutters. (UMF 20.) Specifically, at the time of the incident, Plaintiff and Defendant were travelling to return the pickup truck to its designated and customary drop-off location, where All Clean Gutters employees routinely left the vehicle after completing a job assignment. (UMF 13.)

Plaintiff's argument that he was a "mere passenger" lacks merit. Plaintiff has not cited any authority, and the Court is not aware of any, that would exempt a passenger from workers' compensation exclusivity under these facts.

Neither does the going and coming rule bring this case outside of the workers' compensation statutory framework. It is true that "[a]n employee's commute to and from the workplace is generally not considered to be within the course and scope of employment." (*Newland v. County of Los Angeles* (2018) 24 Cal.App.5th 676, 685.) "This rule, commonly referred to as the 'going and coming rule,' is grounded in the notion that 'the employment relationship is "suspended" from the time the employee leaves until he returns [citation], or that in commuting he is not rendering service to his employer.'" (*Id.* at 686.)

However, exceptions are made "where the trip involves an incidental benefit to the employer, not common to commute trips by ordinary members of the work force." (*Jorge v. Culinary Institute of America* (2016) 3 Cal. App. 5th 382, 398.) "[T]his means not just any trivial benefit to the employer, but a benefit 'sufficient enough to justify making the employer responsible for the risks inherent in the travel.'" (*Id.* at 398.) Here, it is undisputed that Plaintiff and Defendant were travelling to return the pickup truck to its designated and customary drop-off location. (UMF 13.) This was a work-related task. And while Plaintiff attempts to draw a distinction between the driving employee and himself as a passenger in the same work truck, that distinction is not supported by the Labor Code or any case law.

Finally, the Court finds no basis for equitable estoppel from asserting workers' compensation exclusivity based on communications with Defendant Saucedo's insurance carrier. Even if this communication were admissible, it does not appear on its face to be a factual misrepresentation regarding the availability (or exclusivity) of workers' compensation.

Evidentiary Objections

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Plaintiff's objection to Defendants Reply Separate Statement is **sustained**.

Plaintiff's objection to the Declaration of Vicky Pham and exhibits thereto is **sustained**.

Defendants' objection to Plaintiff's Exhibit F is **sustained**.

2. 9:00 AM CASE NUMBER: C22-02814

CASE NAME: NA WANG VS. SETH WIENER

*HEARING ON MOTION IN RE: OF INTENTION TO MOVE TO VACATE SANCTIONS AND TO SET ASIDE THE DISMISSAL

FILED BY: WANG, NA

TENTATIVE RULING:

On December 19, 2025, the court granted Defendant Seth W. Weiner's Motion for Terminating Sanctions and ordered the case dismissed with prejudice.

Before the court is Plaintiff Na Wang's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions, filed May 11, 2026.

Plaintiff's Request for Judicial Notice filed May 11, 2026 is granted. Judicial notice is not necessary for the court to take notice of its own orders and of pleadings in the instant court file.

Defendant's Request for Judicial filed June 12, 2026 is also granted.

Plaintiff's motions fail to state grounds upon which the court can order relief.

Relief is unavailable under Code of Civil Procedure (CCP) § 437(b) for several reasons. First, Plaintiff did not file her motion until May 11, 2026 --four months and 22 days after the order dismissing the case with prejudice on December 29, 2026. Courts recognize that a delay exceeding three months is unreasonable where the litigant provides no evidence to justify the delay. (*Minick v. City of Petaluma* (2026) 3 Cal. App. 5th 15, 35. Here the Plaintiff offers no evidence justifying her delay in filing.

In addition, Plaintiff does not offer any excusable neglect, but instead re-asserts her failure to appear at a court-ordered deposition date as due to "equipment failure." Plaintiff's explanation was not found credible by the court at the December 19, 2025 hearing and in any event it has no bearing on why it took four months and 22 days to file her instant motion. Plaintiff's "equipment failure" argument does not constitute excusable neglect for filing the instant motions on May 11, 2026.